

24PSCV03907 24PSCV03907

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-08-03

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Case Number: 24PSCV03907 Hearing Date: August 3, 2026 Dept: O

Tentative Ruling

(1)

PLAINTIFF'S MOTION TO COMPEL RESPONSES TO PLAINTIFF'S FORM INTERROGATORIES, (SET ONE); REQUEST FOR ATTORNEYS FEES AND/OR FOR AN AWARD OF \$936.65 IN SANCTIONS AGAINST DEFENDANT AND/OR THEIR ATTORNEY OF RECORD is GRANTED.

(2)

PLAINTIFF'S MOTION TO COMPEL RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORIES, (SET ONE); REQUEST FOR ATTORNEYS FEES AND/OR FOR AN AWARD OF \$761.65 IN SANCTIONS AGAINST DEFENDANT AND/OR THEIR ATTORNEY OF RECORD is GRANTED.

(3)

PLAINTIFF'S MOTION TO COMPEL RESPONSES TO PLAINTIFF'S REQUEST FOR PRODUCTION OF DOCUMENTS, (SET ONE); REQUEST FOR ATTORNEYS FEES AND/OR FOR AN AWARD OF \$936.65 IN SANCTIONS AGAINST DEFENDANT AND/OR THEIR ATTORNEY OF RECORD is GRANTED.

(4)

PLAINTIFF'S NOTICE OF MOTION AND MOTION FOR AN ORDER DEEMING REQUEST FOR ADMISSIONS, (SET ONE) DEEMED ADMITTED; REQUEST FOR ATTORNEYS FEES AND/OR FOR AN AWARD OF \$936.65 IN SANCTIONS AGAINST DEFENDANT AND/OR THEIR ATTORNEY OF RECORD is GRANTED.

(5)

PLAINTIFF'S MOTION TO COMPEL RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORIES, (SET ONE); REQUEST FOR ATTORNEYS FEES AND/OR FOR AN AWARD OF \$761.65 IN SANCTIONS AGAINST DEFENDANT AND/OR THEIR ATTORNEY OF

RECORD is GRANTED.

(6)

PLAINTIFF'S MOTION TO COMPEL RESPONSES TO PLAINTIFF'S REQUEST FOR PRODUCTION OF DOCUMENTS, (SET ONE); REQUEST FOR ATTORNEYS FEES AND/OR FOR AN AWARD OF \$936.65 IN SANCTIONS AGAINST DEFENDANT AND/OR THEIR ATTORNEY OF RECORD is GRANTED.

(7)

PLAINTIFF'S MOTION TO COMPEL RESPONSES TO PLAINTIFF'S FORM INTERROGATORIES, (SET ONE); REQUEST FOR ATTORNEYS FEES AND/OR FOR AN AWARD OF \$936.65 IN SANCTIONS AGAINST DEFENDANT AND/OR THEIR ATTORNEY OF RECORD is GRANTED.

(8)

PLAINTIFF'S NOTICE OF MOTION AND MOTION FOR AN ORDER DEEMING REQUEST FOR ADMISSIONS, (SET ONE) DEEMED ADMITTED; REQUEST FOR ATTORNEYS FEES AND/OR FOR AN AWARD OF \$936.65 IN SANCTIONS AGAINST DEFENDANT AND/OR THEIR ATTORNEY OF RECORD is GRANTED.

The court awards attorney fees in the reduced, total amount of \$5,042 which is payable within 10 days of this hearing.

Background

This

lawsuit arises from a multi-vehicle automobile collision that occurred in January 2024.

On

November 13, 2024, Plaintiffs ALICIA MARTINEZ and LAYLA MARTINEZ filed suit against Defendants WEST COAST TRANSPORTATION; UNITED PLUMBING INC. ("United Plumbing"); JOSE RAMIREZ LOPEZ; KEVIN FRANCIS MOORE; JOSE BELTRAN PONCE; and NATHALIE GUERRA for:

1.

Negligence

2.

Negligent Entrustment

3.

Negligent Hiring, Training, Retention, and Supervision

On

January 22, 2025, United Plumbing and Moore filed their answer along with a cross-complaint (CC) for Indemnity/Contribution against WEST COAST TRANSPORTATION and JOSE RAMIREZ LOPEZ.

On

February 1, 2025, Guerra filed her answer along with a CC for comparative indemnity, contribution, and declaratory relief against WEST COAST TRANSPORTATION, UNITED PLUMBING INC., JOSE RAMIREZ LOPEZ, KEVIN FRANCIS MOORE.

On

February 19, 2025, UNITED PLUMBING, INC. and KEVIN FRANCIS MOORE filed their answer to Guerra's CC.

On

February 21, 2025, West Coast Transportation filed its answer to the complaint.

On

April 18, 2025, (another) answer by UNITED PLUMBING, INC. and KEVIN FRANCIS MOORE was filed to Guerra's CC.

On

May 9, 2025, West Coast Transportation and Lopez filed their answer to Guerra's CC.

On

June 20, 2025, Lopez filed his answer to the complaint.

On

June 25, 2025, West Coast Transportation and Lopez filed a CC.

On

November 4, 2025, Ponce filed his answer to the complaint.

On

March 12, 2026, an IDC was held.

On

April 13, 2026, the parties attended a CMC. According to the minute order (MO), "Counsel represent that the parties intend to file a stipulation to consolidate a related case." (No notice of related case/stipulation has been filed.)

On

April 17, 2026, the instant motions were filed.

On

July 7 and 8 of 2026 two oppositions were filed by MARTHA LARREGUI dba WEST COAST TRANSPORTATION to the SROGs and FROGs motions.

On

July 10, 2026, two replies were filed.

Discussion

The

court's ruling will be brief as the motions are not motions to compel further discovery but for orders compelling initial responses. (While duplicates, the motions are directed at West Coast Transportation and Lopez.)

As

set forth in the motions, Plaintiff duly served Defendants with the subject discovery on March 13, 2025 and July 12, 2025. As to all, Defendants requested extensions such as a request for extension made on June 11, 2025 (as to the March 13, 2025 discovery) and July 18, 2025 (as to the June 12, 2025 discovery). Whether the reason being an extension because of a mis-calendaring error or that Defense counsel advised that she had no record of the discovery in her system or emails and requested that Plaintiff re-send all discovery (re West Coast Transportation), Plaintiff gave the extensions and promptly re-served the March 13, 2025 discovery that same day. But still no responses were served. On January 15, 2026, Plaintiff filed a Request for an IDC. It was not until February 25, 2026, in connection with the IDC process that Defense counsel first raised the issue

of being unable to locate and contact

Defendants Martha Larregui (West Coast Transportation) and Jose Ramirez Lopez, attributing the failure to respond to difficulty reaching their clients.

In

opposition, Defendant does not dispute the foregoing. Instead, Defendant argues they have exhibited “continuing and diligent efforts” to contact the insureds and that “Defense counsel is prepared to serve verified responses promptly upon reestablishing

contact

and will comply with any reasonable deadline the Court sets.” (See e.g., FROGs Opp. p. 3:3-7.) Based thereon, Defendant argues that sanctions are unwarranted against counsel because their “active[] participation” in this case “are not the hallmarks of a party or attorney misusing the discovery process, and they make the imposition of sanctions unjust.” (Opp. p. 4:2-5.)

The

court strongly disagrees. As even stated in Defense Counsel Lopez’s declaration, their firm began to locate and communicate with the insured defendants beginning “in or about February 2025.”[1]

Yet, to date, as of July 2026, no motions to be relieved as counsel have been filed. For emphasis, despite over one year of not being able to contact the insured defendants, Defense Counsel contends that they are not “delay[ing]” the process. But continuing to represent a client who clearly has no interest in defending or participating in a case is delaying the process of litigating a case. It is inarguable then that Defendant has acted with substantial justification to prevent the imposition of sanctions.

With

that, the court grants all the motions in their entirety. As for attorney fees, Plaintiffs’ counsel seeks one hour (1) of time expended in the research, preparation and drafting of the SROGs motions and 1.5 hours for the other motions and for each anticipates spending one hour (1) hour of time at the reasonable rate of \$350.00 per hour in the preparation and presentation of this motion at the hearing, and a \$61.65 filing fee/motion. The only reduction the court makes is the for one hour requested/motion in arguing. Since a consolidated argument will likely/need be presented, the court awards two hours total in preparing/presenting the motions. With that, the court awards 11 hours drafting each motion + 2 hours preparing for the hearing/argument for a total of 13 hours x \$350/hour = \$4,550 + \$61.50 filing fee/motion for a TOTAL award of \$5,042 (reduced from the requested total of \$7,143.20).

Conclusion

Based

on the foregoing, the motions are granted.

[1]

It is also reasonable to presume that if such efforts were undertaken in February 2025, that the clients were incommunicado before February 2025, hence the need to undertake efforts to communicate with the clients.